

Mukesh Kumar Dubey v. State of U.P. and Another

High Court of Judicature at Allahabad · Division Bench · 11 August 2023 · 2023:AHC:163163-DB · Writ - C No. 26984 of 2023 · **Writ disposed; petitioner may clear clause 4.1 dues, connection thereafter as per law**

HEADNOTE

Writ seeking a new electricity connection at premises said to carry outstanding dues disposed of. The petitioner may clear the outstanding amount under clause 4.1 of the U.P. Electricity Supply Code, 2005, and the Electricity Department may then provide the connection in accordance with law.

FACTUAL SUMMARY

Mukesh Kumar Dubey approached the Allahabad High Court for a direction that the respondents release a new electricity connection at House No. 416, Kaparphorawa, Varanasi. The Electricity Department resisted the prayer on the ground that electricity dues were outstanding against the premises. Its counsel told the Court that, until those dues were deposited, Clause 4.1 of the U.P. Electricity Supply Code, 2005 stood in the way of a new connection, and that payment would remove the difficulty.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.1

new connection where premises dues are outstanding

HOLDING

A writ for a new connection at premises carrying outstanding electricity dues need not be kept pending. The petitioner is at liberty to clear the outstanding amount as per clause 4.1 of the U.P. Electricity Supply Code, 2005, and the Electricity Department may thereafter provide the connection on the premises in accordance with law. ¶ 3-4

FLAG Cited as clause 4.1, without naming the fourth proviso.

PRINCIPLE TAGS

clause-4.1-fourth-proviso-bar-on-new-connection-for-premises-with-outstanding-dues The Division Bench disposed of the writ for an immediate new connection by leaving the petitioner to clear outstanding dues on the premises under clause 4.1, after which the Electricity Department may provide the connection in accordance with law. ¶ 3-4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — QUANTUM OF THE OUTSTANDING DUES AND WHETHER THEY WERE PAYABLE BY THE PETITIONER

The Court did not quantify the dues or adjudicate liability. Clearance, and any connection thereafter, was left to be worked out in accordance with law. ¶ 3-4